

7	30-2024-01442772 Enright vs. KA Preschool of Huntington Beach	The tentative ruling is to continue Plaintiffs Christin Enright and Aaron Le's (collectively, "Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement to October 26 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiffs must provide documentation and support for any request higher than this percentage at the final approval stage. The papers submitted in support of this preliminary approval motion are inconsistent as to the exact amount requested for enhancement awards for each named plaintiff. The declarations from Plaintiffs request \$10,000.00 for Enright and \$5,000.00 for Le, but the settlement agreement and class notice only request \$10,000.00 and it is unclear if that amount is for each named Plaintiff or total for both. The documents must be amended to be consistent. The motion fails to provide the class members' estimated high and low payments. The average payment must be provided for preliminary approval, but, if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 15% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required.
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		Paragraph 7.5.2 of the settlement agreement states that the administrator shall make the final determination as to the authenticity of an opt-out request. The documents should reflect instead that the court will ultimately decide any unresolved dispute regarding the authenticity of an opt-out request. Paragraphs 7.6 and 7.8.4 of the settlement agreement states that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. The following corrections must be made to the class notice: • Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. • The enhancement award requested for each named plaintiff must be accurately described and clarified in the class notice in Section 7 on Page 4. • The Class Period described on Pages 1 and 2 of the class notice must match the class period defined in the settlement agreement, which ends on the date the court grants preliminary approval of this settlement, not December 31, 2025. • Every Defendant should be listed in the description of the lawsuit at the top of Page 3 of the class notice. • The releases on Page 6 of the class notice should match the releases described in the settlement agreement. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendants.
8	30-2024-01396627 Cayon vs. Zions Bancorporation, N.A.	The hearing on plaintiff's motion for approval is CONTINUED to October 25, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 court days before the hearing and must address as necessary each of the below points. The parties must provide redlined copies for all revised documents as well as revised settlement provisions.